

AMENDMENTS TO THE CALIFORNIA RULES OF COURT

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1 **Rule 2.250. Construction and definitions**

2
3 (a) * * *

4
5 (b) **Definitions**

6
7 As used in this chapter, unless the context otherwise requires:

8
9 (1)–(6) * * *

10
11 (7) “Electronic filing” is the electronic transmission to a court of a document in
12 electronic form. For the purposes of this chapter, this definition concerns the
13 activity of filing and does not include the processing and review of the
14 document, and its entry into the court records, which are necessary for the
15 document to be officially filed.

16
17 (8)–(10) * * *

18
19 *(Subd (b) amended effective July 1, 2013; adopted as unlettered subd effective January 1,*
20 *2003; previously amended and lettered effective January 1, 2011.)*

21
22 *Rule 2.250 amended effective July 1, 2013; adopted as rule 2050 effective January 1, 2003;*
23 *previously amended and renumbered effective January 1, 2007; previously amended effective*
24 *January 1, 2006, January 1, 2008, and January 1, 2011.*

25
26 **Rule 2.251. Electronic service**

27
28 (a) ~~Consent to~~ **Authorization for electronic service**

29
30 ~~(1)~~ When a document may be served by mail, express mail, overnight delivery,
31 or fax transmission, ~~electronic service of the document~~ may be served
32 electronically under is permitted when authorized by Code of Civil Procedure
33 section 1010.6 and these rules in this chapter.

34
35 *(Subd (a) amended effective July 1, 2013; previously amended effective January 1, 2007,*
36 *January 1, 2008, and January 1, 2011.)*

37
38 (b) **Electronic service by consent of the parties**

39
40 ~~(2)~~(1) Electronic service may be established by consent of the parties in an action.

41 A party indicates that the party agrees to accept electronic service by:

42
43 (A) * * *

(B) Electronically filing any document with the court. The act of electronic filing is evidence that the party agrees to accept service at the electronic service address the party has furnished to the court under rule 2.256(a)(4). This subparagraph (B) does not apply to self-represented parties; they must affirmatively consent to electronic service under subparagraph (A).

~~(2)~~(2) A party that has consented to electronic service under ~~(2)~~(1) and has used an electronic filing service provider to serve and file documents in a case consents to service on that electronic filing service provider as the designated agent for service for the party in the case, until such time as the party designates a different agent for service.

(Subd (b) amended and relettered effective July 1, 2013; adopted as part of subd (a); previously amended effective January 1, 2007, January 1, 2008, and January 1, 2011.)

(c) Electronic service required by local rule or court order

(1) A court may require parties to serve documents electronically in specified actions by local rule or court order, as provided in Code of Civil Procedure section 1010.6 and the rules in this chapter.

(2) Except when personal service is otherwise required by statute or rule, a party that is required to file documents electronically in an action must also serve documents and accept service of documents electronically from all other parties, unless:

(A) The court orders otherwise, or

(B) The action includes parties that are not required to file or serve documents electronically, including self-represented parties; those parties are to be served by non-electronic methods unless they affirmatively consent to electronic service.

(3) Each party that is required to serve and accept service of documents electronically must provide all other parties in the action with its electronic service address and must promptly notify all other parties and the court of any changes under (f).

(Subd (c) adopted effective July 1, 2013.)

1 **~~(b)~~(d) Maintenance of electronic service lists**

2
3 A court that ~~orders or~~ permits or requires electronic filing in a case must maintain
4 and make available electronically to the parties an electronic service list that
5 contains the parties' current electronic service addresses, as provided by the parties
6 that have filed electronically in the case.

7
8 *(Subd (d) amended and relettered effective July 1, 2013; adopted effective January 1, 2008*
9 *as subd (b); previously amended effective January 1, 2010, and January 1, 2011.)*

10
11 **~~(e)~~(e) Service by the parties**

12
13 (1) Notwithstanding ~~(b)~~(d), parties are responsible for electronic service on all
14 other parties in the case. A party may serve documents electronically directly,
15 by an agent, or through a designated electronic filing service provider.

16
17 (2) * * *

18
19 *(Subd (e) amended and relettered effective July 1, 2013; adopted as subd (c) effective*
20 *January 1, 2008; previously amended effective January 1, 2011.)*

21
22 **~~(d)~~(f) Change of electronic service address**

23
24 (1)–(3) * * *

25
26 *(Subd (f) relettered effective July 1, 2013; adopted as subd (d) effective January 1, 2008;*
27 *previously amended effective January 1, 2011.)*

28
29 **~~(e)~~(g) Reliability and integrity of documents served by electronic notification**

30
31 A party that serves a document by means of electronic notification must:

32
33 (1)–(3) * * *

34
35 *(Subd (g) relettered effective July 1, 2013; adopted as subd (e) effective January 1, 2011.)*

36
37 **~~(f)~~(h) When service is complete**

38
39 (1) Electronic service of a document is complete at the time of the electronic
40 transmission of the document or at the time that the electronic notification of
41 service of the document is sent. If an electronic filing service provider is used
42 for service, the service is complete at the time that the electronic filing

1 service provider electronically transmits the document or sends electronic
2 notification of service.

3
4 (2)–(4) * * *

5
6 *(Subd (h) amended and relettered effective July 1, 2013; adopted as subd (b); previously*
7 *amended effective January 1, 2007; previously relettered as subd (e) effective January 1,*
8 *2008; previously amended and relettered as subd (f) effective January 1, 2011.)*

9
10 **(g)(i) Proof of service**

11
12 (1)–(4) * * *

13
14 *(Subd (i) relettered effective July 1, 2013; adopted as subd (c); previously relettered as*
15 *subd (f) effective January 1, 2008; previously amended effective January 1, 2007, January*
16 *1, 2009, July 1, 2009, and January 1, 2010; previously amended and relettered as subd (g)*
17 *effective January 1, 2011.)*

18
19 **(h)(j) Electronic service by court**

20
21 * * *

22
23 *(Subd (j) relettered effective July 1, 2013; adopted as subd (e); previously amended*
24 *effective January 1, 2007; previously relettered as subd (g) effective January 1, 2008, and*
25 *as subd (h) effective January 1, 2011.)*

26
27 *Rule 2.251 amended effective July 1, 2013; adopted as rule 2060 effective January 1, 2003;*
28 *previously amended effective January 1, 2008, January 1, 2009, July 1, 2009, and January 1,*
29 *2010; previously amended and renumbered as rule 2.260 effective January 1, 2007, and as rule*
30 *2.251 amended and renumbered effective January 1, 2011.*

31
32 **Rule 2.252. Documents that may be filed electronically General rules on electronic**
33 **filing of documents**

34
35 **(a) In general**

36
37 A court may ~~permit~~ provide for electronic filing of ~~a documents~~ documents in ~~any actions or~~
38 and proceedings as provided under Code of Civil Procedure section 1010.6 and the
39 rules in this chapter unless the rules in this chapter or other legal authority
40 expressly prohibit electronic filing.

41
42 *(Subd (a) amended effective July 1, 2013; previously amended effective January 1, 2007.)*
43

1 **(b) Direct and indirect electronic filing**

2
3 Except as otherwise provided by law, a court may provide for the electronic filing
4 of documents directly with the court, indirectly through one or more approved
5 electronic filing service providers, or through a combination of direct and indirect
6 means.

7
8 *(Subd (b) adopted effective July 1, 2013.)*
9

10 **(c) Effect of document filed electronically**

11
12 (1) A document that the court or a party files electronically under the rules in this
13 chapter has the same legal effect as a document in paper form.

14
15 (2) Filing a document electronically does not alter any filing deadline.

16
17 *(Subd (c) adopted effective July 1, 2013.)*
18

19 **(d) Filing in paper form**

20
21 When it is not feasible for a party to convert a document to electronic form by
22 scanning, imaging, or another means, a court may allow that party to file the
23 document in paper form.

24
25 *(Subd (d) adopted effective July 1, 2013.)*
26

27 **~~(b)~~(e) Original documents**

28
29 * * *

30
31 *(Subd (e) relettered effective July 1, 2013; adopted as subd (b); previously amended*
32 *effective January 1, 2011.)*
33

34 **~~(e)~~(f) Application for waiver of court fees and costs**

35
36 * * *

37
38 *(Subd (f) relettered effective July 1, 2013; adopted as subd (c); previously amended*
39 *effective January 1, 2007.)*
40

41 **~~(d)~~(g) Orders and judgments**

42
43 * * *

(Subd (g) relettered effective July 1, 2013; adopted as subd (d).)

(e)(h) Proposed orders

* * *

(Subd (h) relettered effective July 1, 2013; adopted as subd (e) effective January 1, 2011.)

~~(f) Effect of document filed electronically~~

~~(1) A document that the court or a party files electronically under the rules in this chapter has the same legal effect as a document in paper form.~~

~~(2) Filing a document electronically does not alter any filing deadline.~~

Rule 2.252 amended effective July 1, 2013; adopted as rule 2052 effective January 1, 2003; previously amended and renumbered effective January 1, 2007; previously amended effective January 1, 2011.

Rule 2.253. Permissive electronic filing, mandatory electronic filing, and electronic filing by court order requiring electronic service or filing

(a) Permissive electronic filing

A court may permit parties by local rule to file documents electronically in any types of cases, directly or through approved electronic service providers, subject to the conditions in Code of Civil Procedure section 1010.6 and the rules in this chapter.

(Subd (a) adopted effective July 1, 2013.)

(b) Mandatory electronic filing

A court may require parties by local rule to electronically file documents in civil actions directly with the court, or directly with the court and through one or more approved electronic filing service providers, or through more than one approved electronic filing service provider, subject to the conditions in Code of Civil Procedure section 1010.6, the rules in this chapter, and the following conditions:

(1) The court must specify the types or categories of civil actions in which parties are required to file and serve documents electronically. The court may

1 designate any of the following as eligible for mandatory electronic filing and
2 service:

3
4 (A) All civil cases;

5
6 (B) All civil cases of a specific category, such as unlimited or limited civil
7 cases;

8
9 (C) All civil cases of a specific case type, including but not limited to,
10 contract, collections, personal injury, or employment;

11
12 (D) All civil cases assigned to a judge for all purposes;

13
14 (E) All civil cases assigned to a specific department, courtroom or
15 courthouse;

16
17 (F) Any class actions, consolidated actions, or group of actions,
18 coordinated actions, or actions that are complex under rule 3.403; or

19
20 (G) Any combination of the cases described in subparagraphs (A) to (F),
21 inclusive.

22
23 (2) Self-represented parties are exempt from any mandatory electronic filing and
24 service requirements adopted by courts under this rule and Code of Civil
25 Procedure section 1010.6.

26
27 (3) In civil cases involving both represented and self-represented parties,
28 represented parties may be required to file and serve documents
29 electronically; however, in these cases, each self-represented party is to file,
30 serve, and be served with documents by non-electronic means unless the self-
31 represented party affirmatively agrees otherwise.

32
33 (4) A party that is required to file and serve documents electronically must be
34 excused from the requirements if the party shows undue hardship or
35 significant prejudice. A court requiring the electronic filing and service of
36 documents must have a process for parties, including represented parties, to
37 apply for relief and a procedure for parties excused from filing documents
38 electronically to file them by conventional means.

39
40 (5) Any fees charged by the court shall be for no more than the cost actually
41 incurred by the court in providing for the electronic filing and service of the
42 documents. Any fees charged by an electronic filing service provider shall be
43 reasonable.

- 1
2 (6) Any fees for electronic filing charged by the court or by an electronic filing
3 service provider must be waived when deemed appropriate by the court,
4 including providing a waiver of the fees for any party that has received a fee
5 waiver.
6
7 (7) Any document required to be electronically filed with the court under this
8 subdivision that is received electronically after the close of business on any
9 day is deemed to have been filed on the next court day, unless by local rule
10 the court provides that any document required to be electronically filed with
11 the court under this subdivision that is received electronically before
12 midnight on a court day is deemed to have been filed on that court day, and
13 any document received electronically after midnight is deemed filed on the
14 next court day. This paragraph concerns only the effective date of filing. Any
15 document that is received electronically must be processed and satisfy all
16 other legal filing requirements to be filed as an official court record.
17
18 (8) A court that adopts a mandatory electronic filing program under this
19 subdivision must report semiannually to the Judicial Council on the operation
20 and effectiveness of the court's program.
21

22 *(Subd (b) adopted effective July 1, 2013.)*
23

24 **(a)(c) Electronic filing and service required by court order**
25

26 (1)–(3) * * *

27
28 **(b) Additional provisions of order**

29 (4) The court's order may also provide that:
30

31 (1)(A) * * *

32
33 (2)(B) * * *

34
35 *(Subd (c) amended and relettered effective July 1, 2013; adopted as subd (a) and part of*
36 *subd (b); previously amended effective January 1, 2007, January 1, 2008, and January 1,*
37 *2011.)*
38

39 **(e) Filing in paper form**
40

41 ~~When it is not feasible for a party to convert a document to electronic form by~~
42 ~~scanning, imaging, or another means, a court may allow that party to serve, file, or~~
43 ~~serve and file the document in paper form.~~

1
2 *Rule 2.253 amended effective July 1, 2013; adopted as rule 2053 effective January 1, 2003;*
3 *previously amended and renumbered effective January 1, 2007; previously amended effective*
4 *January 1, 2008, and January 1, 2011.*

5
6 **Advisory Committee Comment**
7

8 **Subdivision (b)(1).** This subdivision allows courts to institute mandatory electronic filing and
9 service in any type of civil case for which the court determines that mandatory electronic filing is
10 appropriate. The scope of this authorization is meant to be broad. It will enable courts to
11 implement mandatory electronic filing in a flexible yet expansive manner. However, in initiating
12 mandatory electronic filing, courts should take into account the fact that some civil case types
13 may be easier and more cost-effective to implement at the outset while other types may require
14 special procedures or other considerations (such as the need to preserve the confidentiality of
15 filed records) that may make them less appropriate for inclusion in initial mandatory e-filing
16 efforts.

17
18 **Subdivision (b)(2).** Although this rule exempts self-represented parties from any mandatory
19 electronic filing and service requirements, these parties are encouraged to participate voluntarily
20 in electronic filing and service. To the extent feasible, courts and other entities should assist self-
21 represented parties to electronically file and serve documents.

22
23 **Subdivision (c).** Court-ordered electronic filing and service under this subdivision are not subject
24 to the provisions in (b) and Code of Civil Procedure section 1010.6 requiring that, where
25 mandatory electronic filing and service are established by local rule, the court and the parties
26 must have access to more than one electronic filing service provider.

27
28 **Rule 2.254. Responsibilities of court**
29

30 **(a) Publication of electronic filing requirements**
31

32 Each court that permits or mandates electronic filing must publish, in both
33 electronic and print formats, the court's electronic filing requirements.
34

35 *(Subd (a) amended effective July 1, 2013; adopted as subd (b); previously amended*
36 *effective January 1, 2007; previously relettered effective January 1, 2011.)*
37

38 **(b)–(c) * * ***
39

40 *Rule 2.254 amended effective July 1, 2013; adopted as rule 2054 effective January 1, 2003;*
41 *previously amended and renumbered effective January 1, 2007; previously amended effective*
42 *January 1, 2011.*
43

1 **Rule 2.256. Responsibilities of electronic filer**

2
3 **(a) Conditions of filing**

4
5 Each electronic filer must:

6
7 (1)–(3) * * *

8
9 (4) Furnish one or more electronic service addresses, in the manner specified by
10 the court, at which the electronic filer agrees to accept service; ~~and~~

11
12 (5) Immediately provide the court and all parties with any change to the
13 electronic filer’s electronic service address; and

14
15 (6) If the electronic filer uses an electronic filing service provider, provide the
16 electronic filing service provider with the electronic address at which the filer
17 is to be sent all documents and immediately notify the electronic filing
18 service provider of any change in that address.

19
20 *(Subd (a) amended effective July 1, 2013; previously amended effective January 1, 2007,*
21 *and January 1, 2011.)*

22
23 **(b) * * ***

24
25 *Rule 2.256 amended effective July 1, 2013; adopted as rule 2056 effective January 1, 2003;*
26 *previously amended and renumbered effective January 1, 2007; previously amended effective*
27 *January 1, 2006, January 1, 2008, January 1, 2010, and January 1, 2011.*

28
29 **Rule 2.258. Payment of filing fees**

30
31 **(a) * * ***

32
33 **(b) Fee waivers**

34
35 Eligible persons may seek a waiver of court fees and costs, as provided in
36 Government Code sections 68630–68641, rule 2.252(~~e~~)(f), and division 2 of title 3
37 of these rules.

38
39 *(Subd (b) amended effective July 1, 2013; previously amended effective January 1, 2007,*
40 *and January 1, 2010.)*

1 Rule 2.258 amended effective July 1, 2013; adopted as rule 2058 effective January 1, 2003;
2 previously amended and renumbered effective January 1, 2007; previously amended effective
3 January 1, 2010.

4
5 **Rule 2.259. Actions by court on receipt of electronic filing**

6
7 **(a)–(b) * * ***

8
9 **(c) Document received after close of business**

10
11 A document that is received electronically by the court after the close of business is
12 deemed to have been received on the next court day, unless the court has provided
13 by local rule, with respect to documents filed under the mandatory electronic filing
14 provisions in rule 2.253(b)(7), that documents received electronically before
15 midnight on a court day are deemed to have been filed on that court day, and
16 documents received electronically after midnight are deemed filed on the next court
17 day. This provision concerns only the effective date of filing. Any document that is
18 electronically filed must be processed and satisfy all other legal filing requirements
19 to be filed as an official court record.

20
21 *(Subd (c) amended effective July 1, 2013; previously amended effective January 1, 2007,*
22 *and January 1, 2011.)*

23
24 **(d)–(f) * * ***

25
26 Rule 2.259 amended effective July 1, 2013; adopted as rule 2059 effective January 1, 2003;
27 previously amended and renumbered effective January 1, 2007; previously amended effective
28 January 1, 2008, and January 1, 2011.

29
30 **Rule 3.670. Telephone appearance**

31
32 **(a)–(h) * * ***

33
34 **(i) Provision of telephone appearance services**

35
36 A court may provide for telephone appearances only through one or more of the
37 following methods:

38
39 **(1) * * ***

40
41 **(2)** ~~An agreement between a court and a vendor that was entered into before July~~
42 ~~1, 2011, and that has not expired. If a contract is subject to cancellation by a~~

1 court after July 1, 2011, that court must exercise its option to cancel the
2 contract as soon after July 1, 2011 as is legally possible to do so.

3
4 (3)(2) The direct provision by the court of telephone appearance services. If a court
5 directly provides telephone services, it must collect the telephone appearance
6 fees specified in (j), except as provided in (k) and (l). A judge may, at his or
7 her discretion, waive telephone appearance fees for parties appearing directly
8 by telephone in that judge's courtroom.

9
10 *(Subd (i) amended effective July 1, 2013; adopted as subd (f) effective July 1, 1998;*
11 *previously relettered as subd (i) effective January 1, 2008; previously amended effective*
12 *January 1, 2003, and July 1, 2011.)*

13
14 **(j) Telephone appearance fee amounts; time for making requests**

15
16 The telephone appearance fees specified in this subdivision are the statewide,
17 uniform fees to be paid by parties to a vendor or court for providing telephone
18 appearance services. ~~These fees supersede any fees paid by parties to vendors or~~
19 ~~courts under agreements or procedures existing before July 1, 2011.~~ Except as
20 provided under (k) and (l), the fees to be paid to appear by telephone are as follows:

21
22 (1) The fee to appear by telephone, made by a timely request to a vendor or court
23 providing telephone appearance services, is ~~\$78~~ \$86 for each appearance.

24
25 (2) An additional late request fee of \$30 is to be charged for an appearance by
26 telephone if the request to the vendor or the court providing telephone
27 services is not made at least three days before the scheduled appearance,
28 except ~~when~~:

29
30 (A) ~~There is~~ When an ex parte or other hearing or conference is set on
31 shortened time for which three days' notice would not be feasible or
32 practical, only the applying party—and not any responding party—is to
33 be charged the late fee;

34
35 (B) When the court, on its own motion, sets a hearing or conference on
36 shortened time, no late fee is to be charged to any party;

37
38 (C) When the matter has a tentative ruling posted within the three-day
39 period, no late fee is to be charged to any party; ~~or~~ and

40
41 (D) When the request to appear by telephone is made by a party that
42 received notice of another party's intent to appear and afterward
43 decides also to appear by telephone under (g)(2), no late fee is to be

1 charged to that party. ~~The request of a party seeking to appear under~~
2 ~~(g)(2) is timely if the~~ its request is made to the vendor or the court
3 providing the service by noon on the court day before the hearing or
4 conference.

5
6 (3) * * *

7
8 *(Subd (j) amended effective July 1, 2013; adopted effective July 1, 2011.)*
9

10 (k) * * *

11
12 **(l) Title IV-D proceedings**

13
14 (1) * * *

15
16 (2) *Vendor-provided telephone appearance services*

17
18 If a vendor provides for telephone appearance services in a proceeding for
19 child or family support under Title IV-D, the amount of the fee for a
20 telephone appearance under (j)(1) is ~~\$58 66~~ instead of ~~\$78 86~~. No portion of
21 the fee received by the vendor for a telephone appearance under this
22 subdivision is to be transmitted to the State Treasury under Government Code
23 section 72011.
24

25 (3)–(4) * * *

26
27 *(Subd (l) amended effective July 1, 2013; adopted effective July 1, 2011.)*
28

29 (m)–(p) * * *

30
31 *Rule 3.670 amended effective July 1, 2013; adopted as rule 298 effective March 1, 1988;*
32 *previously amended and renumbered effective January 1, 2007; previously amended effective*
33 *January 1, 1989, July 1, 1998, January 1, 1999, July 1, 1999, January 1, 2001, July 1, 2002,*
34 *January 1, 2003, January 1, 2008, and July 1, 2011.*
35

36 **Rule 10.46. Trial Court Presiding Judges Advisory Committee**

37
38 (a)–(e) * * *

39
40 (f) **Chair**

41
42 The advisory committee must annually submit to the Chief Justice ~~three~~ one
43 nominations for the chair of the advisory committee. ~~The Chief Justice will select a~~

1 ~~chair from among the names suggested.~~ Any member of the advisory committee
2 whose term as presiding judge would extend at least through the term of the
3 advisory committee chair is eligible for nomination. The nomination must be made
4 by a majority vote of the full advisory committee. In the event that no candidate
5 receives a majority vote on the first ballot, subsequent ballots of the top two
6 candidates will occur until a candidate receives a majority vote. The chair of the
7 advisory committee serves as chair of any Executive Committee established under
8 (d) and as an advisory member of the Judicial Council.

9
10 *(Subd (f) amended effective July 1, 2013; adopted as subd (d); previously amended and*
11 *relettered effective September 1, 2000; previously amended effective April 18, 2003, and*
12 *January 1, 2007.)*

13
14 *Rule 10.46 amended effective July 1, 2013; adopted as rule 6.46 effective January 1, 1999;*
15 *previously amended effective September 1, 2000, and April 18, 2003; previously amended and*
16 *renumbered effective January 1, 2007.*

17 18 19 **Advisory Committee Comment**

20
21 Subdivision (f): An advisory committee member may submit his or her own name, the name of
22 another member of the advisory committee, or the name of an incoming member of the advisory
23 committee to be considered for nomination. An incoming member of the advisory committee may
24 be nominated by a current member of the advisory committee, but he or she may not participate
25 in the voting process. Only current members of the advisory committee may vote. The successful
26 candidate must receive 30 or more votes.

27 28 **Rule 10.491. Minimum education requirements for Administrative Office of the** 29 **Courts executives, managers, supervisors, and other employees**

30
31 **(a)–(b) * * ***

32 33 **(c) Hours-based requirements**

34
35 **(1)–(3) * * ***

36
37 **(4)** ~~The first two-year period begins on January 1, 2008.~~ The orientation courses
38 and the compliance courses required for new managers, supervisors, and
39 other employees under (b) do not apply toward the required hours of
40 continuing education. Each new executive enters the two-year continuing
41 education period on the first day of the quarter following his or her
42 appointment, and each new manager, supervisor, and employee enters the
43 two-year continuing education period on the first day of the quarter following

the six-month period provided for his or her completion of the orientation courses and the compliance courses required under (b); the quarters begin on January 1, April 1, July 1, and October 1. Each executive, manager, supervisor, or employee who enters the two-year continuing education period after it has begun must complete a prorated number of continuing education hours for that two-year period, based on the number of quarters remaining in it.

(5) * * *

(6) Each hour of participation in traditional (live, face-to-face) education; distance education such as broadcasts, videoconference courses, and online coursework; and faculty service counts toward the requirement on an hour-for-hour basis. ~~Each executive, manager, supervisor, and employee must complete at least half of his or her continuing education hours requirement as a participant in traditional (live, face-to-face) education. The individual may complete the balance of his or her education hours requirement through any other means with no limitation on any particular type of education. The~~ Administrative Director of the Courts or an executive, manager, or supervisor, if delegated by the Administrative Director, has discretion to determine the number of hours, if any, of traditional (live, face-to-face) education required to meet the continuing education requirement.

(7)–(8) * * *

(Subd (c) amended effective July 1, 2013; previously amended effective January 1, 2012.)

(d) Extension of time

(1) For good cause, the Administrative Director of the Courts or an executive, manager, or supervisor, if delegated by the Administrative Director, may grant a ~~six-month~~ one-year extension of time to complete the education requirements in this rule. If an extension is granted, the subsequent two-year compliance period begins immediately after the extended compliance period ends, unless otherwise determined by the Administrative Director.

(2) * * *

~~(3) An extension of time to complete the hours-based requirement does not affect the timing of the next two-year period.~~

(Subd (d) amended effective July 1, 2013.)

1 (e)–(f) * * *

2
3 *Rule 10.491 amended effective July 1, 2013; adopted effective January 1, 2008; previously*
4 *amended effective July 1, 2008, and January 1, 2012.*

5
6 **Advisory Committee Comment**

7
8 The time frame for completion of compliance courses based on statutory or regulatory mandates
9 is unaffected by the one-year extension in (d)(1).

Appendix B
Liability Limits of a Parent or Guardian Having Custody and Control of a Minor
for the Torts of a Minor (Civ. Code, § 1714.1)

Formula

Pursuant to Civil Code section 1714.1, the joint and several liability limit of a parent or guardian having custody and control of a minor under subdivisions (a) and (b) for each tort of the minor shall be computed and adjusted as follows:

$$\text{Adjusted limit} = \left[\frac{\text{Current CCPI} - \text{January 1, 1995, CCPI}}{\text{January 1, 1995, CCPI}} + 1 \right] \times \text{January 1, 1995, limit}$$

Definition

“CCPI” means the California Consumer Price Index, as established by the California Department of Industrial Relations.

January 1, 2011-July 1, 2013, calculation and adjustment

The joint and several liability of a parent or guardian having custody and control of a minor under Civil Code section 1714.1, subdivision (a) or (b), effective ~~January 1, 2011~~ July 1, 2013, shall not exceed ~~\$37,400~~ **\$39,300** for each tort.

The calculation is as follows:

$$\text{\$37,445.38 } \underline{\text{\$39,299.50}} = \left[\frac{\underline{\text{226.919}} \text{ } \underline{\text{238.155}} - 151.5}{151.5} + 1 \right] \times \text{\$25,000}$$

Under section 1714.1, subdivision (c), the adjusted limit is rounded to the nearest hundred dollars-, so the dollar amount of the adjusted limit is rounded up to \$39,300.